

Shri Aldino Santos Braganza vs Smt. Marle Dos Santos Braganza on 6 May, 2008

Equivalent citations: AIR 2008 (NOC) 2090 (BOM), AIR 2008 (NOC) 2090 (BOM.) (GOA BENCH), 2008 (3) AIR BOM R 808, 2008 (3) AJHAR (NOC) 928 (BOM), 2008 (3) AJHAR (NOC) 928 (BOM.) (GOA BENCH), 2008 (5) AKAR (NOC) 722 (BOM), 2008 (5) AKAR (NOC) 722 (BOM.) (GOA BENCH), 2008 A I H C 2727, (2008) 5 ALLMR 113 (BOM), (2009) 1 HINDULR 52, (2009) 2 MARRILJ 220, (2008) 2 DMC 709, (2008) 4 BOM CR 603

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Bench: S.A. Bobde

JUDGMENT

N.A. Britto, J.

1. In this Plaintiff's Letters Patent Appeal, the short question for our consideration is whether the plaintiff is entitled for divorce under Article 4(4) of the Law of Divorce in force in the State of Goa which when translated reads as follows:

The contested divorce may be obtained only on the following grounds:

1. ...

2. ...

3. ...

4. Ill-treatment or serious injury.

2. The Plaintiff married the Defendant on 19-4-1987. The Plaintiff is from Assagao whilst the Defendant is from Verla, Parra. The Plaintiff is a mechanical engineer working abroad and periodically comes to Goa whilst the Defendant is a lecturer in a higher secondary school. Theirs was an arranged marriage and the Plaintiff was elder to the Defendant by about 9 years. Armando, their only child was born to them on 16-3-1988. Their relations were rather strained at least from 3-11-1990 if not earlier, as a result of which the Defendant was residing at her mother's house at Verla, Parra during the absence of the Plaintiff while he was abroad.

3. On behalf of the Plaintiff, an advocate's letter dated 21-2-1991 was written to the Defendant to find out a solution in law in respect of the differences arising between the Plaintiff and the Defendant. That letter was replied to by the Defendant's letter dated 26-2-1991. The Plaintiff went for his job on 25-2-1991 and on the same evening the Defendant went to stay at her mother's house at Verla and when the Plaintiff returned on 20-3-1991, the Defendant was not in the matrimonial house at Assagao and she came on 22-3-1991, and according to the Plaintiff, without their son, and, when the Plaintiff questioned the Defendant, the Defendant told him that he would bring the son on the next day but she did not come as told to him but came on 2-4-1991 to collect some articles and when the Plaintiff asked her why she did not come earlier, the Defendant did not reply. The Defendant took some articles and went away.

4. The suit was filed based on an incident which took place at the Plaintiff's house at Assagao on 5-4-1991 regarding which there is no dispute but each of them have given their own versions. The suit was filed on 19-4-1991 and the summons on the Defendant were served on 8-5-1991. After the receipt of the summons by the Defendant, the Plaintiff received a letter dated 7-5-1991 on 14-5-1991 and based on the same the Plaintiff applied for amendment and incorporated additional ground for divorce.

5. Learned Senior Counsel appearing on behalf of both parties do not dispute that the first part of Article 4(4) refers to physical ill treatment and second part to mental cruelty. Not that the second part i.e. Mental cruelty would not include the first part i.e. physical ill treatment.

6. In other words, Plaintiff's suit for divorce is based on physical ill treatment particularly as regards the incident of 5-4-1991 and mental cruelty which is based on the allegation made by the Defendant in the said letter dated 7-5-1991.

7. The suit of the Plaintiff was decreed by the learned trial Court by Judgment/Decree dated 30-3-1999 but the said Judgment/Decree came to be reversed by Judgment dated 21-12-2000 of the learned Single Judge of this Court.

8. By our Order dated 30-1-2006, three points for determination were framed in this appeal. They could be re-numbered as follows:

1. Whether the incident of 5th April, 1991 in the facts and circumstances of the case established ill treatment within the meaning of the said expression under Article 4(4) of the Law of Divorce justifying Decree of Divorce thereunder.

2. Whether the letter dated 7-5-1991 Exh.PW1/B disclose serious injury within the meaning of the said expression under Article 4(4) of the Law of Divorce in the State of Goa justifying Decree of Divorce.

3. Whether one instance of ill treatment or one instance of serious injury is sufficient to entertain the suit and grant a decree of Divorce in terms of Article 4(4) of the Law of Divorce in force in the State of Goa.

9. It is the case of the Plaintiff that on 5-4-1991 at about 5.30 p.m. when the Plaintiff was in the front garden, the Defendant came on a scooter and went straight to the bedroom without talking to the Plaintiff and the Plaintiff found that the Defendant had opened the cupboard with the key which was with her and started collecting her articles. The Plaintiff asked the Defendant as to why she did not bring their son and who was not seen by the Plaintiff for a long time to which the Defendant replied that she would never bring him and the Plaintiff therefore told the Defendant not to take anything from the house when the Defendant slapped the Plaintiff on his face and came in the balcony with the articles already taken and the Plaintiff followed her and after coming to the balcony the Defendant turned around and slapped the Plaintiff again threw his glasses down and the Defendant also tried to kick the Plaintiff but the labourer of the Defendant Shri Prabhakar Gad came forward and intervened. According to the Plaintiff, the incident was witnessed by Carmita D'Souza, Florinda D'Souza, (examined as PW3), Alex D'Souza and Prabhakar Gad (examined as PW2). The Plaintiff stated that the Defendant had ill treated the Plaintiff in the past also.

10. After the receipt of the said letter dated 7-5-1991, the Plaintiff amended the plaint and reproduced the imputation in the said letter which according to the Plaintiff constituted serious injuries i.e. mental cruelty. The said imputation was that during the periods the Plaintiff was absent from Goa on duty, his mother and his elder spinster sister Pramila who were also staying in the said house started ill treating the Plaintiff and the said Pramila stooped so low as to write anonymous letters against the Defendant regarding her family story background, mental illness, education, etc. It was also alleged that under their instigations and also on account of some illicit relations which the Plaintiff had developed somewhere in the Gulf countries, the Plaintiff began ill treating the Defendant whenever the Plaintiff returned home. The Plaintiff sent a reply by letter dated 31-5-1991 denying the allegations. The Plaintiff also stated that the allegations that he had illicit relations in the Gulf country was totally false. The Plaintiff also stated that the Defendant's behaviour was rude, obnoxious and unbecoming that of a young wife. The Plaintiff also stated that the said allegations in the said letter constituted a ground for divorce under Clause 4 of Article 4 of the Law of Divorce.

11. On the other hand, it was the case of the Defendant that the Defendant went to her mother's place with her child with the consent and permission of the Plaintiff and it was never her intention to leave the conjugal domicile nor she had left the same but she was compelled to stay at her mother's place as the Plaintiff was not ready to allow the Defendant to reside in her conjugal house at Assagao. In the first written statement filed by the Defendant, the Defendant denied that there were any differences between the Plaintiff and the Defendant and stated that there were differences between the mother-in-law and the spinster sister-in-law by name Pramila and the Defendant. The Defendant stated that the Plaintiff was under the control of his mother and sister Pramila which gave rise to the said differences but the Defendant had always shown her willingness and was still ready to sort out the differences, if any still existed. The Defendant stated that through her lawyer she organized a meeting with the Plaintiff as well as his lawyer who suggested to sort out the differences arising between the mother-in-law and the spinster sister-in-law and further suggested that being unable to stay in the house when the Plaintiff went abroad due to harassment of mother-in-law and spinster sister-in-law including the harassment of the family servant by name Rosa Costa who was with their family for 12 years and who tried to control the affairs of the family that the Plaintiff should hire a flat or house elsewhere so that the Plaintiff and the Defendant with

the child could stay separately as normal families reside but the Plaintiff turned down the proposal as the Plaintiff was adamant to seek a divorce though the Plaintiff would not succeed nor the Plaintiff would be entitled to it. The Defendant admitted having come to the conjugal house on 2-4-1991 as she wanted some books and a birth certificate of her son but she could take only the birth certificate. The Defendant denied that the Plaintiff inquired with the Defendant as to why she did not come to Assagao despite her knowledge of return with the Plaintiff.

The Defendant stated that it was the duty of the Plaintiff to come and pick up their son soon after he returned but did not even bother in spite of the fact that the Defendant wrote to inform her about the date of his arrival. It was the case of the Defendant that on the same day i.e. on 2-4-1991 the Plaintiff told the Defendant that he wanted her back if the Defendant accepted conditions such as (a) the Defendant should obey whatever terms and conditions he puts, (b) the Defendant should obey and listen to whatever he says, (c) the Defendant should sell her scooter and (d) that the Defendant should cut off the relations with Dr. Ena Abreu and family and families of Tony D'Souza and Olavo Fernandes from Assagao, and, in case the Defendant was not prepared to accept the said conditions she should get out with her baggage.

12. The Defendant stated that she was trying her best to unite and not to separate and for this the Defendant went to seek the assistance of Dr. Camila Costa. The Defendant admitted having gone on 5-4-1991 to collect some of her belongings which were of day to day use and went to open the cupboard, the keys of which were with her, and when the Defendant was removing some of her belongings the Plaintiff came and threatened her not to remove anything from the cupboard and further threatened the Defendant to sign the car papers to enable him to transfer the car which was a Fiat car standing in the name of the Defendant and also demanded from the defendant a sum of Rs. 7000/-, but the Defendant refused to sign the car papers as a result of which the Plaintiff got annoyed and started abusing the Defendant with filthy language and started twisting the arms of the Defendant so badly that she sustained injuries and refused to allow the Defendant to take anything from the cupboard and pushed the Defendant out of the room and at this time the sister of the Defendant by name Madeline Fernandes was present outside the room and she called her for help and whatever articles were taken out from the cupboard were dumped in a room adjacent to the bedroom by the Plaintiff and the Plaintiff closed the room and thereafter the Defendant filed a N.C. complaint with Mapusa Police Station.

13. It was the case of the Defendant that the Plaintiff was so arrogant that he was on the verge of assaulting the Defendant very badly, and in self defence, the Defendant removed the glasses of the Plaintiff which the Plaintiff was wearing so that the Plaintiff was not able to see, the Plaintiff being a myopic. As per the Defendant, the Plaintiff has cooked up a story and the allegation regarding the attempt of kicking is with the intention to make a ground for divorce. The Defendant denied that she assaulted or attempted to kick the Plaintiff as alleged. As per the Defendant the said Prabhakar Gad was in the balcony and witnessed the removing of the glasses and so did the sister, the said Madeline. The Defendant has stated that there was no incident of assault by the Defendant. According to the Defendant, it is the Defendant who was ill treated by the Plaintiff, his mother and his sister by name Pramila who had gone to the extent of writing anonymous letters one of them being dated 5-3-1987 and the Defendant had obtained the opinion of the handwriting expert vide

report dated 17-12-1990. The Defendant stated that on 3-11-1990 the Plaintiff hit the Defendant and tried to strangle her and the mother of the Plaintiff asked the Defendant to get out of the conjugal house and both insulted the Defendant calling her half caste and mad and accused her of having affairs with a bearded man as a result of which she had pain in her neck and also bruises on her arm and therefore she had approach Dr. Abreu, a family friend of the Plaintiff, who prescribed Brufen and salt water fomentation. The Defendant also stated that on 22-12-1990 at night time the Plaintiff hit the Defendant and the mother-in-law pulled her hair twice, and, the Defendant approached Fr. Joe, Mr. Tony, Mrs. Angela D'Souza and Mr. Olavo Fernandes all being the neighbours of the Plaintiff and reported the incident to them and all of them came to the house of the Plaintiff when the Plaintiff admitted having hit the Defendant. On the same night when the Defendant was screaming for help because of hitting and pulling of hair by the Plaintiff and his mother, the Defendant ran out from the back door and called out to the sisters of Devmata Convent who were residing in the next house and three sisters from the said Convent came for her help and thereafter went to the house of the Plaintiff to settle the issue. As per the Defendant, the ill treatment by the Plaintiff and that of his mother as well as of his sister were continuously going on from time to time and the Defendant was totally frustrated on account of emotional security. As per the Defendant due to the instigations of the sister and the mother of the Plaintiff, the Defendant has been forced to stay with her mother at Parra and no steps are taken by the Plaintiff, on his own, to take her back and on the contrary inspite of efforts made by the Defendant the Plaintiff has not come forward to sort out the differences and the Plaintiff has deserted the Defendant when the Defendant is ready and willing to stay with the Plaintiff.

14. Initially, three issues were framed by the trial Court. The first was regarding ill treatment by the Defendant, the second was regarding the Defendant leading an adulterous life and the third regarding the Defendant being forced to leave the conjugal home due to the ill treatment given to her by the sister and mother of the Plaintiff. Issue Nos. 2 and 3 came to be deleted and only issue which remained to be adjudicated was the first issue regarding the ill treatment by the Defendant.

15. The learned trial Court recorded evidence of three witnesses for the Plaintiff and four of the Defendant and came to the conclusion that the Plaintiff had succeeded in proving that the Defendant had ill treated the Plaintiff and therefore the Plaintiff was held to be entitled to divorce under Article 4(4) of the Law of Divorce.

16. However, the learned Single Judge of this Court came to the conclusion that the incident of 5-4-1991 of slapping the Plaintiff by the Defendant, even if held to be proved, it could not be called so humiliating, so discrediting and so shameful or causing such mental agony that it should be treated as a ground for dissolution of marriage. The learned Single Judge also held that the said incident appeared to be of doubtful nature as no medical certificate was produced by the Plaintiff showing any injury on his person and thus there was neither any injury nor any humiliation. The learned Single Judge accepted the Defendant's version as regards the said incident as honest and sincere and held that the repeated attempts made by her for reconciliation were corroborated by other witnesses. The learned Single Judge noted that the evidence of Prabhakar Gad/PW2 had to be weighed very cautiously and with circumspection, and, this the learned Single Judge did, inspite of the fact that the presence of Prabhakar Gad/PW2 was admitted by the defendant not only in the

front portion of the garden of the Plaintiff but in the veranda of the house itself. Regarding the letter dated 7-5-1991 the learned Single Judge held that one such sentence did find a place therein about the husband having some affairs in the Gulf countries but the Plaintiff did a mountain out of a molehill when the whole trust of the letter was on the mother-in-law and sister-in-law of the Plaintiff. The learned Single Judge also held that it was erroneous on the part of the trial Court to have granted the divorce on the vague statement in the letter dated 7-5-1991 allegedly made on the instructions of the Defendant and therefore proceeded to dismiss the suit.

17. Efforts were made by this Court to bring about a reconciliation between the parties. The efforts did not succeed. Admittedly, both the parties are living separately for over seventeen long years. As per the Defendant, the Plaintiff has deserted her. It can be reasonably inferred, notwithstanding Defendant's hope to the contrary, that the marriage between the parties has broken down irretrievably. Time, it is said, heals all wounds; but there are times when time only festers them. This appears to be a case where passage of time has only widened the gap between both the parties. Irretrievable break down of marriage, as the law stands, gives no ground for divorce but it is apt to keep in mind what the Apex Court stated in *V. Bhagat v. D. Bhagat*. The Apex Court has stated that while scrutinizing the evidence on record to determine whether the grounds alleged are made out and while determining the relief to be granted, the said circumstance can certainly be borne in mind. Matrimonial relations between them have ceased to exist *de facto*, though they exist *de jure*. It will serve no purpose, either of the parties, or the society that they should remain as husband and wife only bound in law when in fact they have ceased to be as such.

18. Before we deal with the incident of 5-4-1991, which as already stated, is otherwise admitted, though the versions differ, it must be stated that the Plaintiff and the Defendant parted company on 25-2-1991, when the Plaintiff went to the Gulf for work and the Defendant to her mother's place. The Plaintiff returned from the Gulf on 20-3-1991 but did not find the Defendant in the house. As per the Plaintiff, the Defendant knew his full programme of his arrival and departure and that statement cannot be doubted because the Plaintiff used to work for about four weeks and then again come on leave for about four weeks. If the Defendant had gone to her mother's house on 25-2-1991 with Plaintiff's permission, as stated by her, what prevented the Defendant returning to the conjugal house before the return of the Plaintiff on 20-3-1991 as was expected of any spouse? It is also admitted that the Defendant came to the house on 22-3-1991 and according to the Plaintiff, without their son but according to the Defendant she had gone to the neighbour's house on that day where she came to know about the arrival of her husband and thereafter she visited the house. It is also not the case of the Defendant that on knowing that her husband had arrived, she returned back to reside in the house, and at least that would have been normal behaviour as a spouse in case she had gone to her mother's house with the Plaintiff's permission, as otherwise stated by her. The Defendant again visited the house on 2-4-1991 only to collect some articles and when questioned by the plaintiff, as to why she had not come earlier, the Defendant did not reply. Then, the Defendant came again on 5-4-1991. The question of the Defendant asking the Plaintiff whether he did not want her back, in our view, would not arise since it is not the case of the Defendant that she was thrown out of the house by the Plaintiff and in case she had gone to her mother's house with the permission of the Plaintiff it was expected of her to have returned back before the Plaintiff arrived and in any event immediately thereafter, after she came to know about the arrival of the Plaintiff.

19. Admittedly, the incident of 5-4-1991 took place in the presence of Prabhakar Gad/PW2 and the Defendant's sister Madeline and although the Plaintiff examined the said Prabhakar Gad/PW2 to support his version, the Defendant chose not to examine her sister, the said Madeline and apparently without any explanation. This was a fit case to draw adverse inference against the Defendant for non examination of the said Madeline. As per the Plaintiff, she saw the Defendant coming on a scooter and going directly to the bedroom without wishing him and she came without bringing their son and he followed her in the bedroom and he saw the Defendant removing some articles from the cupboard and when he asked her as to why she did not bring her son to which she replied that she would never bring the son to the house, and, he told her not to take the articles from the cupboard and for this the Defendant slapped him on his face, and thereafter locked the cupboard, and came out in the balcony, after having collected the articles, from the cupboard and he followed her in the balcony and thereafter she slapped the Plaintiff on his face as a result of which, his spectacles fell on the ground and when he was trying to pick up the spectacles she was about to kick him when Prabhakar/PW2 intervened. The Defendant's version as regards this incident is that she had gone to collect her son's things and her sister was accompanying her but she did not enter the gate and she went inside the house in the room and opened the cupboard to take the required articles and the Plaintiff came and told her that she would not take anything out of the house and further told her that she had to sign the car papers and when she told him that she would not sign the car papers he got angry and started twisting both the arms and took away the things and threw them in the adjoining room and thereafter started pushing her out and at the main door when he was trying to assault her, she took off his glasses because the Plaintiff cannot see without glasses and thereafter she lodged her complaint.

20. The learned Senior Counsel on behalf of the Defendant contends that it is the Defendant's version which is more credible. Learned Counsel further contends that it is the Plaintiff who would have been angry and that explains that it is the Plaintiff who twisted the Defendant's hands. We are unable to accept these submissions. The version of the Defendant that she took off his glasses is not supported by any witnesses but on the contrary the Plaintiff's version that the glasses fell with the slap given by the Defendant is a version which is sufficiently corroborated by the said Prabhakar Gad/PW2 and Florinda D'Souza/PW3. The Defendant's version that she took out the glasses also appears to be improbable in that she admitted that the Plaintiff can read without glasses and further stated that she was not aware whether the Plaintiff could see things within the range of three meters without glasses. That apart, in case the Plaintiff was angry, the Defendant would not have ventured to go close to him which would only enable the Plaintiff to assault the Defendant but on the contrary would have ran away from him or called for help. Moreover, Prabhakar Gad/PW2 stated that the Defendant came on a scooter and straight went inside the house and the Plaintiff followed her and after some time he heard a loud voice from the house and saw the Defendant coming from the balcony with a plastic bag in the hand and the Defendant kept the plastic bag on the ground and gave a slap on the Plaintiff as a result, his spectacles fell on the ground, and he went and caught hold of her and brought her back, and, thereafter she went away talking loudly. In cross-examination he stated that since the Plaintiff had told her that he had to be a witness, he remembered about the date of the incident. In further cross-examination he stated that he did not know whether there was any beating inside the house and he saw the giving of slaps about a distance of 30 meters. Learned Senior Counsel, on behalf of the Defendant, submits that Prabhakar Gad/PW2 could not have come

flying from that distance, and prevented the Plaintiff being kicked by the Defendant. We are unable to accept the said submission, as well. The distance given by Prabhakar Gad/PW2 who is an agriculturist cannot be taken with mathematical precision and more so because the Defendant has herself admitted that the Plaintiff was in the veranda of the house. If Prabhakar Gad/PW2 saw the incident from the veranda or from outside the house, Florinda/PW3 saw the incident from inside the house. She stated that when she had gone to the house of the Plaintiff to meet his mother on 5-4-1991 at about 4.30 p.m. and when she was there, her brother Alex D'Souza and sister Carmita came in the house and the mother of the plaintiff offered them tea and at that time the Defendant came, followed by the plaintiff, and both of them went in the room and after some time the Defendant came with a plastic bag and she was going out of the house and when she reached at the veranda she kept the bag and gave a slap to the Plaintiff as a result of which his spectacles fell on the ground and when the Plaintiff was picking up the spectacles the Defendant was about to kick the Plaintiff but Prabhakar Gad came and separated both of them. She stated that when she came inside the house she saw Prabhakar Gad working in the garden. In cross-examination she stated that on 5-4-1991 she had gone to the house of the Plaintiff for the first time to inquire about his mother and the place where she was sitting was 20 meters away from the place where the incident took place. She also stated that she could not see Prabhakar Gad/PW2 working in the garden from the place where she was sitting and he was working at a distance of 50 meters away from the veranda and she could not exactly say about the distance. The aforesaid answers given by this witness have been highlighted, on behalf of the Defendant, by the learned Senior Counsel to suggest that Florinda/PW3 was not present. However, it is to be noted that on behalf of the Defendant no reason has been assigned why Florinda/PW3, who was their neighbour, should have deposed falsely in favour of the Plaintiff and against the Defendant. In our view, there is nothing in her cross-examination to even remotely suggest that Florinda/PW3 was not present and that she had deposed falsely. What happened inside the room could only be to the knowledge of the Plaintiff and the Defendant and only because the Defendant went and gave a complaint that the Plaintiff twisted her arms would not make her version more truthful than that of the Plaintiff. What followed thereafter when the Defendant reached the veranda was seen by other witnesses and have been deposed to by them. In a situation like this there was no other option but to accept the version of the incident as given by the Plaintiff as it was sufficiently corroborated by two witnesses against none examined by the Defendant inspite of the Defendant's sister having been there as a witness to the incident. Assuming, for a moment that the Plaintiff twisted the Defendant's hands out of anger because the Defendant had not come home, had not brought the son and was taking away the articles for the second time, the Defendant slapped the Plaintiff and the matter ought to have ended there. Whatever might have transpired between the Plaintiff and the Defendant, inside the room, it was certainly not expected of the Defendant to have carried her anger outside the room and in the presence of Plaintiff's labourer and neighbours slap the Plaintiff and attempt to kick him. The learned Single Judge was not at all justified in approaching the evidence of Prabhakar Gad/PW2 either with caution or with circumspection once his presence was admitted. There was no reason for him to have deposed falsely in favour of the plaintiff and against the Defendant. In our view, the learned Single Judge also did not spell out any reasons as to why the Plaintiff's version, when it was corroborated by two witnesses did not appear to be a sincere narration and smacked of a cooked up story. The slapping of the husband and then trying to kick him in the presence of others was no ordinary wear and tear of married life and as the said incident took place in public view including

that of the Plaintiff's labourer, other neighbours and Defendant's own sister, it could certainly be said that it was shameful and humiliating to the Plaintiff and was sufficient enough to give a cause for divorce. The Plaintiff could not be reasonably expected to live with the Defendant after an incident of this nature. Learned Senior Counsel on behalf of the Defendant contended that a single incident like that, even if true, cannot give a ground for divorce. A singular instance like this, which certainly is not of trivial nature but shameful and humiliating is sufficient to obtain divorce under the first part of Article 4(4) of the Law of Divorce.

21. Cruelty can be physical or mental. The incident of 5-4-1991 is of physical ill treatment. As stated by the Apex Court in *N. G. Dastane(Dr.) v. S. Dastane* the inquiry therefore has to be whether the conduct charged as cruelty is of such a character as to cause in the mind of the Petitioner a reasonable apprehension that it will be harmful or injurious for him to live with the Respondent. In *Chetan Das v. Kamla Devi* (2001) (4) SC 250 the Apex Court stated that matrimonial matters are matters of delicate human and emotional relationship. It demands mutual trust, regard, respect, love and affection with sufficient play for reasonable adjustments with the spouse. The relationship has to conform to the social norms as well. The matrimonial conduct has now come to be governed by statute framed, keeping in view such norms and changed social order. It is sought to be controlled in the interest of the individuals as well as in broader perspective, for regulating matrimonial norms for making of a well-knit, healthy and not a disturbed and porous society. The institution of marriage occupies an important place and role to play in the society, in general. Therefore, it would not be appropriate to apply any submission of 'irretrievably broken marriage' as a straitjacket formula for grant of relief of divorce. This aspect has to be considered in the background of the other facts and circumstances of the case. In *A. Jayachandra v. Aneel Kaur*, the Apex Court, speaking through three learned Judges, has stated that to constitute cruelty, the conduct complained of should be grave and weighty so as to come to the conclusion that the Petitioner spouse cannot be reasonably expected to live with the other spouse. It must be something more serious than ordinary wear and tear of married life. The conduct, taking into consideration the circumstances and the background has to be examined to reach the conclusion whether the conduct complained of amounts to cruelty in the matrimonial law. Conduct has to be considered, as noted above, in the background of several factors such as social status of parties, their education, physical and mental conditions, customs and traditions. It is difficult to lay down a precise definition or to give exhaustive description of the circumstances, which would constitute cruelty. It must be of the type as to satisfy the conscience of the Court that the relationship between the parties had deteriorated to such an extent due to the conduct of the other spouse that it would be impossible for them to live together without mental agony, torture or distress, to entitle the complaining spouse to secure divorce. Physical violence is not absolutely essential to constitute cruelty and a consistent course of conduct inflicting immeasurable mental agony and torture may well constitute cruelty within the meaning of Section 10 of the Act(Hindu Marriage Act, 1955). Mental cruelty may consist of verbal abuses and insults by using filthy and abusive language leading to constant disturbance of mental peace of the other party.

22. We have already taken note of the social status of the parties, namely of the Plaintiff and the Defendant. In our view, the singular incident which took place in the veranda of the Plaintiff in the presence of the Defendant's sister, Plaintiff's labourer and other neighbours can certainly be

considered to be grave and weighty so as to entitle the Plaintiff for a Decree of Divorce. The Plaintiff could not be expected to live with the Defendant after an incident of this nature. As already noted the incident of 5-4-1991 was certainly shameful and humiliating to the Plaintiff and as such the parties cannot be reasonably expected to live together after the said incident. In our view, the said incident in itself was sufficient to give to the Plaintiff a cause for divorce within the meaning of the first part of Article 4(4) of the Law of Divorce.

23. The anonymous letter dated 5-3-1987 was held by the learned trial Court as not proved and in our view, rightly. The Defendant is stated to have sent the said letter for the opinion of the handwriting expert by name Mahesh Vagh and in the absence of the said Mahesh Vagh being examined it could not be said that the said letter was written by the spinster sister of the Plaintiff. The learned trial Court also noted that the said letter was written on 5-3-1987 i.e. before the Plaintiff and the Defendant got married on 19-4-1987 and therefore it did not have a bearing on the case. The learned Senior Counsel on behalf of the Defendant has submitted that the Plaintiff was a person who was completely under the control of his mother and his spinster sister, which ultimately led to the present state of affairs. Admittedly, the Defendant knew that she was marrying the Plaintiff who had a mother and a spinster sister. Admittedly, the Plaintiff's and Defendant's marriage was an arranged marriage and if the Plaintiff was under such control of his said mother and his said spinster sister nothing had prevented either of them not to have approved the Defendant's proposal and there was no particular reason for the Plaintiff's elder sister to have written the said letter dated 5-3-1987.

24. Coming to the ground of mental cruelty based on the imputation contained in notice dated 7-5-1991 the learned trial Court came to the conclusion that the said imputation did cause mental cruelty to the Plaintiff. The learned first appellate Court observed that the said imputation was nothing but a stray sentence in the said letter of which capital was sought to be made out by the Plaintiff as if he was waiting for some move like that. There is no dispute that the said letter dated 7-5-1991 addressed on behalf of the Defendant by her Advocate, was received by the Plaintiff on or about 14-5-1991 and based on the said letter the Plaintiff by application dated 6-3-1992 sought amendment of the plaint to introduce one more ground for divorce pleading that the said imputation contained in the said letter constituted mental cruelty(injuria grave). This was after the Plaintiff had replied to the said letter by his letter dated 31-5-1991 denying the said allegation that it was false. It is interesting to note that the Defendant has not denied that the said letter was sent by the Defendant's Advocate to the Plaintiff and not only that the incidents mentioned in the said letter dated 7-5-1991(Exh.K) came to be incorporated subsequently by way of an amendment to the written statement in paras 20(a) and 20(b) of the written statement. The contention raised on behalf of the Defendant is that the Defendant had not given instructions to her said Advocate Shri Menezes to write about the said imputation. In other words, it is the Defendant's contention that the imputation in the said letter dated 7-5-1991 that the Plaintiff under instigation from his mother and sister and also on account of some illicit relations which he had developed somewhere in the Gulf countries was ill treating the Defendant whenever she returned home was written without her instructions. Learned Senior Counsel on behalf of the Defendant has firstly submitted that there is not even a whisper in the evidence of the Plaintiff that the said imputation had caused mental cruelty to him. Learned Senior Counsel has further submitted that it was for the Plaintiff to have examined the said Advocate Shri Menezes in order to prove the said imputation.

25. On the other hand, learned Senior Counsel on behalf of the Plaintiff has submitted that the said imputation by itself was sufficient proof of mental cruelty to the Plaintiff and it was not necessary as a matter of ritualistic formality for the Plaintiff to have said so in his evidence before the Court. Learned Senior Counsel on behalf of the Plaintiff further submits that the very fact that the Defendant alleged that the Plaintiff was living an adulterous life in the Gulf countries was sufficient to cause mental cruelty to the Plaintiff and in this context learned Senior Counsel has placed reliance on a decision of the Supreme Court of Portugal dated 14-6-1955 and also on the decision of *Shobha Rani v. Madhukar Reddi*. Learned Senior Counsel on behalf of the Defendant has placed reliance on the case of *L.I.C. v. Narmada Agarwalla and Ors.* .

26. In the case of *L.I.C. v. Narmada Agarwalla and Ors.* (supra) learned Single Judge of Orissa High Court stated that when a document is marked on admission, the question of admissibility recedes to background. It was open to the Plaintiffs not to admit the document. If it was wrongly stated to be marked on admission, Plaintiffs could have brought the same to the notice of the Court to correct the error. Without taking such steps, it is not open to the Plaintiffs to dispute the document to be a piece of evidence in this case. Once a document is marked on admission, contents thereof are also treated to be admitted. Mr. Das, however, is correct in his submission that contents may have been admitted, not its truth. Truth of correctness is to be ascertained from the evidence. A party admitting a document has right to explain that though the document contains such a statement, it is not correct. Explaining Ext. E which discloses that Dr. Thomas had recorded the history which was reported by the patient himself. Mr. Das submitted that Ext. E is not by Dr. Thomas. There is no statement in Ext. E that it was prepared out of the records of the hospital. There is no statement that Dr. Thomas stated to the doctor preparing Ext. E that Debakilal made such a statement. In such circumstances, though the contents of Ext. E might have been admitted, truth or correctness of the statements in Ext. E are not admitted. When Ext. F does not disclose that Debakilal made the statement to Dr. Thomas and Dr. Thomas has not been examined to prove this fact, hear-say statement of the doctor in Ext. E cannot be accepted in the present case.

27. As far as the proof of the said imputation is concerned, learned Senior Counsel on behalf of the Defendant has submitted that it was for the Plaintiff to prove that the said imputation was introduced in the letter upon instructions of the Defendant and that the Defendant cannot be compelled to prove a negative fact. It is his contention that the burden was entirely on the Plaintiff.

28. On the other hand, learned Senior Counsel on behalf of the Plaintiff has submitted that the said letter dated 7-5-1991 is a document which emanated from the Defendant and there is no dispute about it and what is disputed is only a portion of it and since it is Defendant's contention that the Defendant had not instructed her Advocate to write that particular part of the letter, the onus that she did not give instructions to write the same was entirely on the Defendant.

29. As already stated, there is no dispute at all, that the said letter was sent by the Defendant's Advocate upon her instructions as set out in the said letter dated 7-5-1991(Exh.K) and not only that some of the averments made in the said letter subsequently came to be incorporated in the written statement filed by the Defendant. There is no whisper in the Defendant's evidence that that part of the letter was sent without her instructions and in case it was not sent upon her instructions it was

expected of the Defendant at least at some stage to write to her Advocate that that part of the letter was sent without her instructions which the Defendant failed to do. There is also no whisper in the evidence of the Defendant that the said imputation was written without her instructions. Once the document was admitted as having been sent, upon the instructions of the Defendant, the burden that a particular part of it was sent without her instructions was entirely on the Defendant. The illustration (b) to Section 102 of the Indian Evidence Act, 1872 would cover a case of this nature. Therefore, in our view, once the sending of the letter was admitted but a part of it was alleged as written without the instructions of the Defendant, it was entirely on the Defendant to prove the same and which in our view the Defendant failed to prove and as such it must be held that the said imputation was made by the Defendant's Advocate at her instance. There would have been no reason for the Defendant's Advocate to convey the said imputation unless he was instructed to do so by the Defendant.

30. Once the said imputation is proved, as having been made by the Defendant, it was not necessary for the Plaintiff to have stated in so many words, as a ritualistic formula that he had suffered mentally on account of the said imputation. Inference could certainly be drawn as a matter of law from proved facts. In the decision of the Supreme Court at Lisbon dated 14-6-1995 it was held that when the wife who accuses the husband who is a teacher of having sexual relations with the servants of the school, insults him seriously and justifies the mental state derived from the words which are by themselves injurious with the intention of insulting.

31. The Apex Court in *Shobha Rani v. Madhukar Reddi* (supra) has observed with reference to Section 13(1)(i-A) of the Hindu Marriage Act, 1955 that the expression cruelty is used in relation to human conduct or behaviour. It is the conduct in relation to or in respect of matrimonial duties and obligations. It is a course of conduct of one which is adversely affecting the other. The cruelty may be mental or physical, intentional or unintentional. If it is mental the problem presents difficulty. First the inquiry must begin as to the nature of the cruel treatment. Second, the impact of such treatment in the mind of the spouse. Whether it causes reasonable apprehension that it would be harmful or injurious to live with the other. Ultimately, it is a matter of inference to be drawn by taking into account the nature of the conduct and its effect on the complaining spouse. There may be, however, cases where the conduct complained of itself is bad enough and per se unlawful or illegal. Then the impact or the injurious effect on the other spouse need not be inquired into or considered. In such cases, the cruelty will be established if the conduct itself is proved or admitted.

32. The Apex Court in *Narayan Ganesh Dastane v. Sucheta Narayan Dastane* approved the view, that the Court has to deal, not with an ideal husband and an ideal wife (assuming any such exist) but with particular man and woman before it. The ideal couple or a near-ideal one will probably have no occasion to go to a matrimonial Court, for, even if they may not be able to drown their differences, their ideal attitudes may help them overlook or gloss over mutual faults and failures. The Apex Court also stated that when a spouse makes a complaint about the treatment of cruelty by the partner in life or relations, the Court should not search for standard in life. A set of facts stigmatized as cruelty in one case may not be so in another case. The cruelty alleged may largely depend upon the type of life the parties are accustomed to or their economic and social conditions. It may also depend upon their culture and human values to which they attach importance. Generally, the

Judges and lawyers, should not import their own notions of life. We may not go in parallel with them. There may be a generation gap between the Judges and the parties. It would be better if the Judges keep aside their customs and manner. It would be also better if Judges less depend upon precedents. New type of cruelty may crop up in any case depending upon the human behaviour, capacity or incapability to tolerate the conduct complained of. Such is the wonderful/realm of cruelty.

33. The Apex Court in *A. Jayachandra v. Aneel Kaur* has reiterated that cruelty can be physical or mental and an attempt has been made to define the same as a wilful and unjustifiable conduct of such character as to cause danger to life, limb or health, bodily or mental, or as to give rise to a reasonable apprehension of such a danger. The question of mental cruelty has to be considered in the light of the norms of marital ties of the particular society to which the parties belong, their social values, status, environment in which they live. If from the conduct of the spouse cruelty is established and/or an inference can be legitimately drawn that the treatment of the spouse is such that it causes an apprehension in the mind of the other spouse, about his or her mental welfare then this conduct amounts to cruelty. In a delicate human relationship like matrimony, one has to see the probabilities of the case and legal cruelty has to be found out not merely as a matter of fact but as the effect on the mind of the complainant spouse because of the acts or omissions of the other. In case of physical cruelty there can be tangible and direct evidence but in the case of mental cruelty there may not at the same time be direct evidence. In cases where there is no direct evidence, Courts are required to probe into the mental process and mental effect of incidents that are brought out in evidence. It is in this view that one has to consider the evidence in matrimonial disputes.

34. The Apex Court has also stated that the expression cruelty has been used in relation to human conduct or human behaviour. It is a question of fact and degree. If it is mental, the problem presents difficulties. First, the inquiry must begin as to the nature of cruel treatment, second the impact of such treatment in the mind of the spouse, whether it causes reasonable apprehension that it would be harmful or injurious to live with the other. Ultimately, it is a matter of inference to be drawn by taking into account the nature of the conduct and its effect on the complaining spouse. However, there may be a case where the conduct complained of itself is bad enough and per se unlawful or illegal. Then the impact or injurious effect on the other spouse need not be inquired into or considered. In such cases, the cruelty will be established if the conduct itself is proved or admitted.

35. In the case at hand, the Plaintiff has been able to prove that the Defendant humiliated him publicly by slapping him and then trying to kick him. The Plaintiff has also proved that the Defendant made an imputation in writing and certainly not in the hit of an argument, that the Plaintiff was living an adulterous life while he was at work in the Gulf countries. Both the said incidents, namely physical and the mental cruelty arising therefrom were more than sufficient to entitle the Plaintiff for a decree of divorce under Article 4(4) of the Law of Divorce. The physical assault was both grave and weighty so also the allegation that the Plaintiff was living an adulterous life. On the face of the said physical assault and the allegation of adultery it was not at all necessary for the Plaintiff, to have in so many words stated in his evidence that he was thereby hurt mentally. Making of the imputation was itself bad enough and it was not necessary for the Plaintiff to have stated in so many words that thereby he had suffered mentally.

36. In the light of the above discussion, we answer all the questions framed in the affirmative. We find there is merit in this appeal and the same deserves to succeed.

37. As a result, the impugned Judgment of the learned Single Judge is hereby set aside and that of the learned Civil Judge, Senior Division is restored thus dissolving the marriage of the Plaintiff with the defendant by Decree of Divorce granted in terms of Article 4(4) of the Law of Divorce.

38. At this stage, learned Counsel on behalf of the Respondent prays for stay of the Judgment. Counsel for the Appellant objects. Considering the facts and circumstances of the case, we are inclined to stay the operation of the Judgment for the period of twelve weeks.